THE STATE

Versus

OCEAN MPOFU

IN THE HIGH COURT ZIMBABWE
NDUNA J
BULAWAYO 6 JULY 2026

Criminal Review

NDUNA J: The accused appeared before the Provincial Magistrate at Bulawayo's Western Commonage Magistrates Court facing allegations of contravening *Section 3(1) of The Gold Trade Act [Chapter 21:03]*. The accused pleaded guilty to the charge and was convicted and sentenced as follows: -

> *"USD250 in default of payment to 9 months' imprisonment. In addition the Gold involved was forfeited to the state*.

The accused was further allowed time to pay the fine until 17 July 2026.

It is noted that the accused was convicted of contravening a statutory offence under the Gold Trade Act. It follows that both the conviction and, more particularly, the sentencing of the accused were required to be in accordance with the provisions of that Act. While the conviction was proper, the sentence imposed was not in accordance with the statutory framework and, consequently, did not accord with the requirements of real justice.

The breached statutory provision provides for the offence and sentencing of offenders for this offence as follows:

> **"3 Prohibition of dealing in gold**
> (1) No person shall, either as principal or agent, deal in or possess gold, unless—
> (a) he or she is the holder of a licence or permit; or
> (b) he or she is a holder or tributor; or
> (c) he or she is the holder of an authority, grant or permit issued under the Mines and Minerals Act [Chapter 21:05] authorising him or her to work an alluvial gold deposit; or
> (d) he or she is the employee or agent of any of the persons mentioned in paragraphs (a), (b) and (c) and is authorised by his or her employer or

> principal to deal in gold in the lawful possession of such employer or principal; or
> (e) he or she is an authorised dealer; or
> (f) the person in question is the national gold refinery; or
> (g) he or she is a person who has acquired authorised gold bars ultimately acquired from, an authorised dealer or the national gold refinery.
> ……..
>
> (3) Any person who contravenes subsection (1) shall be guilty of an offence and liable—
>
> > (a) if there are no special circumstances in the particular case, to imprisonment for a period of not less than five years or more than ten years; or
> > (b) if the person convicted of the offence satisfies the court that there are special circumstances in the particular case why the penalty provided under paragraph (a) should not be imposed, which circumstances shall be recorded by the court, to imprisonment for a period not exceeding five years or a fine not exceeding level nine or twice the value of the gold that is the subject matter of the offence, whichever is the greater, or to both such fine and such imprisonment
> > [Subsection inserted by section 45 of Act 12 of 2006]
> > (4) A court sentencing a person under paragraph (a) subsection (3) shall not order that the operation of the whole or any part of the sentence be suspended"

The above provision creates an offence that carries a mandatory minimum sentence of five years' imprisonment unless the court makes a finding of special circumstances. In the present matter, the trial court made no effort to inquire into or determine the existence of special circumstances. Instead, the accused was simply sentenced to a term of imprisonment that could only have been lawfully imposed upon a positive finding of special circumstances. In the absence of such a finding, the sentence imposed was not supported by the statutory requirements.

In *S vs Mbewe & Others 1988 (1) ZLR 7* the court held that "*Special circumstances*", means any extraordinary factor arising out of the commission of the offence or which is peculiar to the offender. The court continued and stated that:

> "A clear distinction must be drawn between special circumstances and mitigating features which are of general application, such as good character or particular hardship. The latter do not constitute special circumstances, nor does contrition or co-operation on the part of the accused".

In *S v Chisiwa 1981 ZLR 666 at 670* the court held that there is no difference between a "special reason" and "special circumstances".

As to the meaning of "special", the court in *Chisiwa'*s case (supra) had this to say at p 671 A:

> "The clear intention of the Legislature in using this word is that the reasons have to be out of the ordinary, either in their extent or their nature."

It is therefore clear that the court erred in proceeding in the manner that it did. In the circumstances, it is appropriate to quash the proceedings. The accused should be recalled, and the matter remitted for a trial de novo before a different magistrate.

Accordingly, the proceedings are hereby quashed, and the matter is remitted to the court *a quo* to be heard afresh before a different magistrate.

NDUNA J……

DUBE J: ……. I agree